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File No.: EXP202403627

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on February 7, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On February 7, 2024, a complaint was received by this Agency submitted by Mr. A.A.A. (hereinafter, the complainant) against BMW BANK GMBH (hereinafter, the respondent) for not having duly addressed his right to erasure.

The complainant states that, upon learning that his personal data had been included in common credit information systems, without prior payment request from BMW BANK GMBH, nor notification of inclusion from the Asnef file, he sent the respondent, via email dated December 29, 2023, a request for the erasure of his personal data.

He states that the respondent has not responded to his request.

He provides a copy of the email sent.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

There is no record that the respondent submitted any response regarding this file within the established timeframe.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on May 7, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data decided to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days, they could present any arguments they deemed appropriate.

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The respondent indicated, despite what was stated by this Agency in its Admission Agreement, that it did submit a document to this Agency, dated April 3, 2024, responding, but that "(...) the response document to the transfer of the complaint (...) mistakenly indicated an incorrect reference in its heading, although the name of the attached file included in the electronic form contained the correct reference. This party believes that this error could have led to an incorrect processing of its document."

The respondent reiterates what it claimed in its aforementioned document of April 3, 2024:

"1st. On August 12, 2021, the complainant signed a Loan Agreement for the Financing of Movable Goods with BMW Bank for the financing of the motor vehicle (...). The amount of the loan was (...) €, with the last installment due on August 12, 2025.

Attached as Document No. 1 is a copy of the contract signed with the complainant and, as Document No. 2, the privacy policy and consent declaration provided to Mr. A.A.A. on the same day and signed by him.

In clause 4.4, section f), of the aforementioned privacy policy, the following is stated:

"(f) Communication of negative data to credit information systems: to the extent that the legal requirements regarding payment requests are met, we may provide your Data to credit information systems in the event of non-payment."

2nd. The complainant stopped paying the monthly installments in July 2022. Therefore, from BMW Bank, initially extrajudicially, and subsequently judicially, various debt collection actions were carried

out:

- On October 10, 2022, a first payment request was made, reminding Mr. A.A.A. of the possible inclusion of his data in a solvency and credit file (Document No. 3). Specifically, the following was stated:

"Furthermore, we inform you that, if any amount remains overdue and unpaid, your data will be included in files related to compliance or non-compliance with monetary obligations."

- Although Mr. A.A.A. proceeded to pay part of the amount owed, he did not fully settle the debt and continued to default on his payment commitments in the following months. Therefore, on April 19, 2023, when the debt amounted to (...) €, a burofax was sent for debt collection and notice of early maturity (Document No. 4).

- On May 15, 2023, another payment request was made to Mr. A.A.A., since, although he had made a partial payment of the required amount, he still owed (...) €. In this request, he was reminded again

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that their data will be communicated to files of financial solvency and credit (Document No. 5).

- On June 8, 2023, a new burofax was sent to Mr. A.A.A. demanding payment of the debt and announcing early maturity. At this time, the debt amounted to (...) € (Document No. 6).

- Finally, on September 11, 2023, BMW Bank filed a lawsuit against Mr. A.A.A. in the Court of First Instance of ***LOCALITY.1. This document is accompanied by the filed complaint (Document No. 7) and the admission order (Document No. 8).

(...) 3rd. For its part, the claimant has exercised the right to erasure twice against BMW Bank. Mr. A.A.A. sent a letter to BMW Bank on April 21, 2023, with the same text as the complaint he has submitted to this Agency. A response was given on May 8, 2023, stating the following:

"Given all the above, and in response to the exercise of the right to erasure that you have raised, while respecting your considerations, we inform you that the inclusion of your personal data in the aforementioned solvency file, given the time elapsed without the complete payment of the claimed debt and since there is a certain, due, and enforceable debt that remains unpaid, is correct.

As a consequence of the above, BMW Bank will continue to include your personal data in the solvency file until the debt is fully paid or the period established by law is fulfilled. (...)"

Attached to this document is the communication sent by Mr. A.A.A. (Document No. 9) and the response from this bank (Document No. 10). (...)

5th. Mr. A.A.A. sent another complaint to BMW Bank on December 29, 2023, with the same text as his first letter from April 2023 and the complaint submitted to this Spanish Agency for Data Protection (Document No. 13). BMW Bank sent its response to Mr. A.A.A. on January 24, 2024 (Document No. 14).

As evidenced in the summary of facts presented:

(i) Mr. A.A.A. was informed of the possibility of including his data in financial solvency and credit files both at the time of signing the contract and in subsequent payment demands.

(ii) The requests for the exercise of rights by Mr. A.A.A. have been duly responded to by this party. Finally, we wish to state that Mr. A.A.A. continues (i) not to pay the debt claimed by BMW Bank, which amounted to (...) € at the time the ordinary lawsuit was filed.

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"(...) The claimant's data is not blocked, as he maintains a due, liquid, and enforceable debt with this entity that is in the process of judicial claim."

The responding party has provided a copy of the lawsuit filed with the Court dated September 11,

2023, and the admission of the lawsuit (Notification of admission sent on October 2, 2023).

FOURTH: After examining the document submitted by the responding party, it is forwarded to the claimant, so that, within ten working days, he may formulate any allegations he deems appropriate, failing to make allegations within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, it was forwarded to the responding party for them to respond.

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proceed to its analysis, respond to this Agency within one month, and prove that it has provided the claimant with the appropriate response.

The result of this transfer did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on May 7, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, among which is included "ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under

this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to address such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the data controller.

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The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the data controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;

d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
e) for the establishment, exercise, or defense of legal claims."

V

Joint Responsibility

Article 20 of the LOPDGD, referring to credit information systems, in its paragraph 2 establishes that the entities maintaining the system and the creditors, regarding the processing of data related to their debtors, shall be considered joint controllers of the data processing, being subject to the provisions established by Article 26 of Regulation (EU) 2016/679, with the creditor entity being responsible for ensuring that the requirements for inclusion in the debt system are met, being liable for their non-existence or inaccuracy.

Article 26 of the GDPR, Joint Controllers, provides that

"1. Where two or more controllers jointly determine the purposes and means of processing, they shall be considered joint controllers. The joint controllers shall determine their respective responsibilities in a transparent manner and by mutual agreement in compliance with the obligations imposed by this Regulation, in particular regarding the exercise of the rights of the data subject and their respective obligations to provide information referred to in Articles 13 and 14, unless, and to the extent that, their respective responsibilities are governed by Union or Member State law applicable to them. Such an arrangement may designate a contact point for data subjects.

2. The arrangement referred to in paragraph 1 shall duly reflect the functions and relationships of the joint controllers in relation to the data subjects. The essential aspects of the arrangement shall be made available to the data subject.

3. Regardless of the terms of the arrangement referred to in paragraph 1, data subjects may exercise the rights conferred on them by this Regulation in respect of, and against, each of the controllers."

On the other hand, the Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state that "When two or more controllers process data jointly, the provision of the joint controllers regarding their respective responsibilities in relation to the exercise of the rights of the data subject, particularly regarding responses to access requests, shall not affect the rights of data subjects against the controller to whom they direct their request."

VI

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in data protection legislation. Therefore,

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In the present case, only the facts related to the exercise of these rights will be analyzed and evaluated, excluding the other issues raised by the parties.

In the present case, and taking into account the provisions of the previous paragraph, from the examination of the documentation provided, it has been established that the claimant, on December 29, 2023, requested the deletion of their data from the defendant.

However, after the admission of the claim for processing, the defendant has evidenced, through the submission of various documents, the existence of an enforceable and not overdue credit against the claimant, as well as various requests made to the latter via Burofax, notifying them of the possible inclusion of their data in a solvency file in the event that the owed amount was not settled. Likewise, the defendant has demonstrated that they responded to the deletion request made by the claimant, indicating that it was not possible since there was still a certain, overdue, and enforceable debt.

Consequently, after verifying the aforementioned assessment, it follows that the request for the deletion of personal data exercised by the claimant has been duly responded to by the defendant, and that the latter is legitimized to oppose such deletion, since at the time of the request and by virtue of

the current regulations, it met the requirements to maintain the processing of their personal data in the credit system.

Based on the above, it is appropriate to dismiss the claim that initiated the present procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the claim made by Mr. A.A.A. against BMW BANK GMBH.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to BMW BANK GMBH.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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